

on 2d conviction :	ing six months ; on a second conviction for adultery or fornication, the offenders shall be fined in a sum, not less than three hundred dollars ; and, at the discretion of the court trying the case, may be imprisoned in the county jail, not exceeding twelve months ; and
on 3d conviction.	upon a third, or any subsequent conviction, the offender shall be punished by imprisonment in the penitentiary two years.
Polygamy defined.	§ 4. If any person, who has a former wife or husband living, shall marry another ; or if he or she continue to cohabit with such second husband or wife in this state, he or she shall, except in the cases mentioned in the following section, be deemed guilty of polygamy, and shall be punished by imprisonment in the penitentiary, not less than two, and not exceeding five years.
How punished.	
Who not embraced in § 4.	§ 5. The provisions of the preceding section shall not extend to any person whose husband or wife shall have continually remained absent for the space of five years together, the party marrying again not knowing the other to be living within that time ; nor to any person, by reason of any former marriage, that shall have been dissolved by the decree of a competent court, when he or she was not the guilty cause of such divorce.
Incest.	§ 6. Persons, within the degrees of consanguinity or relationship within which marriages are declared by law to be incestuous and void, who shall intermarry with each other, or who shall live in a state of adultery with each other, knowing of such consanguinity, shall, upon conviction, be punished by imprisonment in the penitentiary not less than two, and not exceeding seven years.
How punished.	
Crime against nature.	§ 7. Every person, who shall commit the abominable and detestable crime against nature, either with mankind or with any beast, shall be punished by imprisonment in the penitentiary not less than two, nor exceeding ten years.
How punished.	
Playing with cards, dice, &c., at any tavern &c.	§ 8. If any person shall play at any tavern, inn, store-house for retailing spirituous liquors, or house or place where spirituous liquors are retailed, or given away, or any public house or highway, or any other public place, or in any out house where people resort, at any game or games, with cards or dice, or with any other device or substitute for cards or dice, such person, so offending, shall, on conviction thereof, be fined in a sum not less than twenty and not exceeding fifty dollars.
How punished.	
Keeper or proprietor of such house, suffering such gaming &c.	§ 9. Every tavern-keeper, or proprietor, or superintendent of any other public house, or owner or proprietor of any out house where people resort, or retailer of spirituous liquors, who shall knowingly suffer any game, inhibited by the preceding section, to be exhibited or played in his tavern, inn, or house for retailing spirituous liquors, or in any house or shelter apartment thereto, or any other public place or out house where people resort, shall, upon conviction, be fined not less than fifty and not exceeding three hundred dollars.
How punished.	
Attorney-general, or solicitor, may summon witness to go before grand jury and testify against gamblers.	§ 10. The attorney-general and the several solicitors of this state shall have the power, and it shall be their duty, to send a summons to any person or persons, in the name of such solicitor or attorney-general, directing them to come before the grand jury of the proper county, and to give evidence of any gaming in violation of the laws of this state against that offence ; and the person or persons so summoned shall not be liable or subject to an indictment, for any offence of which he may have given evidence ; and the attorney-general, and the several solicitors, are authorized to issue a summons as aforesaid, not only while the grand jury is in session, before which the witness may be required to testify, but at any time previous to the sitting of the court at which they are to be impaneled ; and if